

A
M E A S U R E

PASSED BY

The National Assembly of the Church of England

To provide for the appointment of Diocesan Reorganisation Committees and to define their powers and duties ; to provide for deferring the restoration of damaged churches and parsonage houses, and for suspending the exercise of rights of presentation in certain cases ; and to enable Diocesan Boards of Finance to receive payments under the War Damage Act, 1941.

[29th July 1941.]

1. As soon as may be after the passing of this Measure and in any case not later than six calendar months thereafter the Diocesan Conference of every diocese within the Provinces of Canterbury and York, except the Diocese of Sodor and Man, shall appoint a committee responsible to the Diocesan Conference to be known as the Diocesan Reorganisation Committee, constituted in accordance with the Schedule to this Measure.

Appointment
of Diocesan
Reorganisation
Committees.

2. It shall be the duty of the Diocesan Reorganisation Committee in each diocese—

Duties of
Diocesan
Reorganisation
Committees.

(i) to act on behalf of the owners of all church lands within the diocese with regard to—

(a) the presentation and negotiation of claims for compensation in respect of such lands under the War Damage Act, 1941, or any Act extending or amending the same ;

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c. 12.

(b) the receipt by the Diocesan Board of Finance of any payments made by the War Damage Commission in respect thereof ; and

(c) the disposal or allocation of any such payments, after consultation so far as practicable with the owners of the lands concerned, and subject to any conditions determined by the War Damage Commission ;

(ii) to give advice to incumbents and others concerned as to the execution or deferment of repairs to churches and other buildings on church lands within the diocese ;

- (iii) to make recommendations to the bishop for rearrangement of the pastoral supervision of any area within the diocese in which by reason of war damage or other circumstances arising out of the war such rearrangement may appear to them to be desirable, after consultation so far as practicable with the incumbents, patrons and parochial church councils within such area, including recommendations for alterations of parochial boundaries, the holding of benefices in plurality, unions or disunions of benefices and parishes, the restoration or disposal of churches or parsonage houses or the sites thereof, the appropriation or re-allocation of endowments and any other matters consequential upon the proposed rearrangement.

Power to defer
restoration
of churches.

3.—(1) If the Diocesan Reorganisation Committee shall recommend that any church within the diocese injured by war damage shall not be restored pending further consideration, the bishop may request the Ecclesiastical Commissioners to make an order deferring the restoration of the church for a period not exceeding five years, and the Ecclesiastical Commissioners may thereupon make an order accordingly.

(2) The Ecclesiastical Commissioners shall send a copy of such order to the registrar of the diocese concerned to be filed in the diocesan registry, and shall send copies also to the incumbent and patron of the benefice and to the parochial church council of the parish in which the church is situate.

(3) While such order shall be in force the church shall not be restored without the consent of the bishop, and in the meantime—

- (i) neither the parochial church council nor any other person shall be liable to maintain or insure the fabric of the church or any part thereof, including the chancel, except to such extent (if any) as may be provided by the order ;
- (ii) any payment made in respect of insurance against war damage of the furniture and other chattels belonging to the church shall be received by the Diocesan Board of Finance, who shall repay thereout on application the amount of any premiums paid in respect thereof pursuant to the War Damage Act, 1941, and shall hold or apply the balance of such payment and any investments representing the same for the benefit of such church if restored, and otherwise for the benefit of such other church or churches as the Diocesan Reorganisation Committee shall determine, after consultation with the incumbent and parochial church council of the parish concerned ;

- (iii) banns of marriage of persons entitled to be married in the church may be published and marriages of such persons may be solemnised in such other church chapel or place of worship within the diocese as the bishop shall in writing direct.

(4) Any such order shall be reconsidered on the written request of the incumbent or patron of the benefice or parochial church council of the parish concerned.

4.—(1) If the Diocesan Reorganisation Committee shall recommend that any parsonage house within the diocese injured by war damage shall not be restored, the bishop may request Queen Anne's Bounty to make an order deferring the restoration of such house for a period not exceeding five years, and Queen Anne's Bounty may thereupon make an order accordingly.

Power to defer restoration of parsonage houses.

(2) Queen Anne's Bounty shall send a copy of such order to the registrar of the diocese concerned to be filed in the diocesan registry, and shall send copies also to the incumbent and patron of the benefice, the parochial church council of the parish concerned, and the Diocesan Dilapidations Board.

(3) As from the date of such order, the incumbent shall cease to be liable to maintain the said parsonage house in accordance with the law of ecclesiastical dilapidations, unless and until the same shall have been restored, and Queen Anne's Bounty and the Diocesan Dilapidations Board shall make such consequential variations in any assessments or orders under the Ecclesiastical Dilapidations Measures 1923 to 1929 affecting such house and give such directions as to the repayment of any moneys paid under the said Measures and otherwise as the circumstances may from time to time require.

5.—(1) When the Ecclesiastical Commissioners have made an order under section three of this Measure deferring the restoration of the principal church of any benefice, and the benefice is or afterwards becomes vacant, no presentation of a clerk to fill the benefice shall be made without the consent of the bishop for a term of five years from the date of this Measure. Provided that—

Provisions as to patronage where restoration of the principal church is deferred.

- (i) the period between the making of the order or the occurrence of the vacancy (whichever shall be the later) and the date when the consent of the bishop is given or the expiration of the said term of five years (whichever shall be the earlier) shall not be reckoned for purposes of lapse ;
- (ii) in making provision for the cure of souls during any such vacancy, the bishop shall consult with the patron of the benefice and the parochial church council of the parish concerned, and shall give effect so far as possible to their wishes.

(2) Any question arising under this section as to which is the principal church of a benefice shall be determined by the bishop.

(3) This section shall not apply to rights of presentation vested in or exercised by His Majesty, whether in right of his Crown or of his Duchy of Lancaster, or to rights of presentation vested in or exercised by His Majesty or by the Duke of Cornwall as the possessor for the time being of the Duchy of Cornwall, or to rights of presentation exercised by the Admiralty in respect of benefices the patronage of which belongs to Greenwich Hospital.

Power to
Diocesan
Board of
Finance to
give receipts.

6. The Diocesan Board of Finance of the diocese shall have power on behalf of the Diocesan Reorganisation Committee to give a receipt for moneys paid under section thirty-nine of the War Damage Act, 1941, in respect of church lands within the diocese, and shall hold or apply such moneys and any investments representing the same for such purposes as the Diocesan Reorganisation Committee shall direct.

Interpretation.

7. In this Measure the following expressions have the following meanings respectively, that is to say—

“the bishop” means the bishop of the diocese concerned;

“church lands” includes all land as defined by the War Damage Act, 1941, within the Provinces of Canterbury and York which is held and used for ecclesiastical purposes of the Church of England or for the advancement of religion or religious education in accordance with the principles of the Church of England, except land belonging beneficially to cathedral or collegiate bodies or central or diocesan organisations;

“Diocesan Dilapidations Board” has the meaning assigned to it by the Ecclesiastical Dilapidations Measure, 1923;

the “patron” with reference to any benefice means the person or persons for the time being entitled otherwise than by lapse to present or collate to such benefice upon a vacancy;

“war damage” and “War Damage Commission” have the meanings assigned to them respectively by the War Damage Act, 1941.

Short title.

8. This Measure may be cited as the Diocesan Reorganisation Committees Measure, 1941.

SCHEDULE.

CONSTITUTION OF DIOCESAN REORGANISATION COMMITTEES.

1. The Diocesan Reorganisation Committee in every diocese shall consist of the following *ex officio* members, that is to say—

The bishop ;
The suffragan bishops (if any) ;
The archdeacons ;

and the following ordinary members, that is to say :—

Not less than ten or more than twenty other persons (of whom not less than one-third shall be of the clergy and not less than one-third shall be of the laity) elected or appointed by the Diocesan Conference or in such manner as the Diocesan Conference may direct, such persons not necessarily being members of the Diocesan Conference.

The Committee shall co-opt one person nominated by each of the following bodies which is not in the opinion of the Committee already adequately represented :—

the Diocesan Board of Finance ;
the Diocesan Dilapidations Board ;
the Diocesan Union of Benefices Committee (if any) ;
the Diocesan Advisory Committee for the care of churches ;
the Diocesan Committee (if any) dealing with questions of religious education.

2. The first ordinary members shall hold office until 1945. Thereafter ordinary members shall hold office for three years. The Committee shall have power to fill any casual vacancies and may act notwithstanding any vacancy in its membership.

3. The chairman of the Committee shall be the bishop or some other member of the Committee nominated by him.

4. Five members of the Committee shall form a quorum.

5. The Committee shall have power to appoint sub-committees, including persons not members of the Committee, to consider the problems of such areas as are referred to in paragraph (iii) of section two, or for other special purposes.

6. Subject to the foregoing provisions, and to any directions given by the Diocesan Conference, the Committee shall have power to regulate its own procedure.

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